

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
JOSEPH CASTRO,

Index No.

Purchased 7-3-20Plaintiff designates Queens
County as the place of trial

Plaintiff

- against -

The basis of the venue is
where the tort aroseTHE CITY OF NEW YORK,
POLICE OFFICER MATTHEW PERULLO (tax reg. # 952110),
POLICE OFFICER JOHN DOE,

SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
July 3, 2020
THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
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Index No.

Purchased

7-3-20

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MATTHEW PERULLO (tax reg. # 952110),
POLICE OFFICER JOHN DOE,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, by his attorney, **ELLIOT S. KAY**, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against Defendants for committing acts under color of law, and depriving Plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. §1331.

2. Plaintiff, at all times herein mentioned, was and still is a resident of Queens County in the State of New York.

3. At all times mentioned herein, Defendants POLICE OFFICER MATTHEW PERULLO (tax

reg. # 952110)(“P.O. PERULLO”) and POLICE OFFICER JOHN DOE (“P.O. DOE”) were and still are residents of the State of New York.

4. At all times herein mentioned, Defendant CITY OF NEW YORK (“NYC”) was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendant NYC and Defendants P.O. PERULLO and P.O. DOE, stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendant NYC is vicariously liable for the acts of Defendants P.O. PERULLO and P.O. DOE.

7. At all times herein mentioned, Defendants P.O. PERULLO and P.O. DOE were and still are police officers employed by the New York City Police Department (“NYPD”).

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

8. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff sues all Defendants in their capacities.

10. On or about April 23, 2016, at approximately 10:50 p.m., in the vicinity of 111 Avenue and Inwood Street in Queens County, Plaintiff was in the driver’s seat of a vehicle when multiple police officers, including P.O. PERULLO, approached the vehicle. Immediately after approaching the vehicle, the police directed Plaintiff to exit his vehicle. Next, P.O. PERULLO violently grabbed Plaintiff and handcuffed Plaintiff. The police, including P.O. PERULLO and P.O. DOE, falsely accused Plaintiff of driving vehicle while intoxicated and related charges.

Next, P.O. PERULLO and P.O. DOE, without legal justification, searched Plaintiff's car.

11. Members of the NYPD, including P.O. PERULLO, removed Plaintiff to a police precinct. Several hours later, Plaintiff was taken to Queens County Central Booking. On April 24, 2016, P.O. PERULLO signed a criminal complaint related to the criminal charges against Plaintiff. At that time, P.O. PERULLO either knew or should have known that the contents of the criminal complaint were false and/or misleading and that Plaintiff did not commit the acts alleged in the criminal complaint.

12. At Plaintiff's arraignment held on April 24, 2016, the Court released Plaintiff on his own recognizance. Plaintiff had to defend against false charges until a jury acquitted Plaintiff of all charges on July 18, 2017.

13. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and malicious prosecution were all carried out without a warrant or probable cause and with malice.

14. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

15. Prior to April 23, 2016, NYC and the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of NYC to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the respondent officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as

many arrests as possible without concern for the validity of those arrests. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND SUPERVISION

16. Plaintiff repeats and re-alleges each and every allegation above as if set forth at length herein.

17. Prior to on or about April 23, 2016, Defendant NYC knew or should have known Defendants P.O. PERULLO and P.O. DOE to be unruly and to verbally threaten and to harass other human beings and to make unlawful arrests.

18. That defendant NYC negligently hired and trained P.O. PERULLO and P.O. DOE, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

19. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

20. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

21. The Defendants, and each of them, acted outrageously for their above-stated roles in the

wrongful stop, detainment, charging, malicious prosecution, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

22. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

23. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

24. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

25. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

26. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

27. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well-being, and were based on a lack of concern and ill-will towards Plaintiff.

28. Plaintiff therefore demands punitive damages in the amount that exceeds the jurisdictional

limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: July 3, 2020
Bronx, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

TO:

James E. Johnson
New York City Law Department
100 Church Street
New York, New York 10007

P.O. Matthew Perullo (tax reg. # 952110)

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Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MATTHEW PERULLO (tax reg. # 952110),
POLICE OFFICER JOHN DOE,

VERIFICATION

Defendants.
-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
July 3, 2020

ELLIOT S. KAY